Summary: Declaration of President Bedjaoui

Appended to the ICJ Advisory Opinion on the *Legality of the Threat or Use of Nuclear Weapons*, 8 July 1996 (translation from French) – 24 paragraphs

In one paragraph. President Mohammed Bedjaoui cast the deciding vote that adopted **operative paragraph 2E** (7–7): nuclear weapons "would generally be contrary" to IHL, but the Court "cannot conclude definitively" on use "in an extreme circumstance of self-defence, in which the very survival of a State would be at stake". In this declaration he explains how 2E should be read: the Court's inability to decide is **not** a door left "ajar" to legality, and the **Lotus principle** (what is not prohibited is permitted) does **not** apply. In substance, he argues that nuclear weapons are by nature **indiscriminate** and cause **unnecessary suffering**, so "atomic warfare and humanitarian law … appear to be **mutually exclusive**"; that the core IHL principles are, in his view, **jus cogens**; that even a state's right to survival cannot exempt it from these "intransgressible" norms; and that the duty to negotiate nuclear disarmament is **erga omnes and customary**.

1. Why he wrote the declaration (paras. 1–9)

- He rarely writes separate opinions, but adopting 2E by his **casting vote** (Art. 55 ICJ Statute) was "sufficiently exceptional" that explaining it was a **duty**, not an option (para. 1).
- **Humanity under a "suspended sentence"**: since Hiroshima (6 August 1945) fear has become "man's first nature". The UN Charter promised to "save succeeding generations from the scourge of war", yet humanity remains exposed to self-destruction; the end of the Cold War stopped the "star wars" arms race, but **proliferation** continues despite the NPT – "fear and folly may still link hands … to perform a final dance of death" (paras. 2–5).
- Humanity is subject to "perverse and unremitting **nuclear blackmail**"; the Court had to play its part, within the limits of its Statute and the law (para. 6).
- The Court examined the question with unprecedented care and sought to **state the law as it is** – not to create new law or urge states to legislate (para. 7).
- There is **no immediate and clear answer**; the reply may seem unsatisfactory, but the Court has at least pointed out the **imperfections** of international law, which states – its creators – must correct (para. 8). The Court "could not say what the law does not say" (para. 9).

2. How paragraph 2E must be read (paras. 10–18)

- Some will read 2E as allowing nuclear use in exceptional circumstances. Bedjaoui rejects this: "the Court's inability to go beyond this statement of the situation can **in no way** be interpreted to mean that it is **leaving the door ajar** to recognition of the legality" of nuclear weapons (paras. 10–11).
- **Lotus rejected**: the PCIJ's *Lotus* judgment (1927) – that conduct not expressly prohibited is permitted – reflects a past era of a "law of strict co-existence" and resolute **voluntarism**. It has "very limited application" here (para. 12).
- **International law has changed**: from co-existence to **co-operation**; the emergence of the "international community", international organizations, **erga omnes** obligations, **jus cogens** and the common heritage of mankind – an **objective** conception reflecting a "collective juridical conscience". Technology now allows the instantaneous eradication of humanity (para. 13).
- Unlike *Lotus*, which gave "the **green light** of authorization" for lack of a "red light of prohibition", the Court here "does not feel able to give a signal either way". It does **not** infer any freedom of action from uncertainty: "what is not expressly prohibited by international law is not therefore authorized" (paras. 14–15).

- The Court notes a **law in transition**: one rule is "already defunct" and its successor "does not yet exist". States should not see in this "any authorization whatever to act as they please" (para. 16).
- The Court went as far as the available elements allowed (para. 17). The second sentence of 2E marks the point beyond which it could not go without exceeding its judicial role. The votes did not follow **geographical lines** – a sign of the judges' independence (para. 18).

3. His substantive reasons (paras. 19–22)

- IHL is "a particularly exacting corpus of rules … meant to be applied **in all circumstances**" (para. 19).
- **Nuclear weapons v. IHL**: they can be expected to cause **indiscriminate** victims and **unnecessary suffering** among combatants and non-combatants. The nuclear weapon is a "**blind weapon**"; IHL is "the law of discrimination". "Nuclear weapons, the **ultimate evil**, destabilize humanitarian law which is the **law of the lesser evil**." They also harm the environment on which the right to life depends. Until a "clean" weapon that can distinguish exists, "**atomic warfare and humanitarian law therefore appear to be mutually exclusive**" (para. 20).
- **Jus cogens**: he has "no doubt" that most IHL principles – and in any event the prohibitions of **indiscriminate weapons** and **unnecessary suffering** – are **jus cogens**. The Court did not decide this point but called them "intransgressible principles of international customary law" (para. 79 of the Opinion) (para. 21).
- **State survival v. humanity**: a state's right to survival is also fundamental, "similar … to a 'natural' law". But self-defence, even when survival is at stake, "**cannot** produce a situation in which a State would exonerate itself from compliance with the 'intransgressible' norms" of IHL. There may be a "head-on collision of fundamental principles", yet using nuclear weapons to save one state risks the **survival of all mankind** through escalation – it would be "quite foolhardy" to place a state's survival above humanity's (para. 22).

4. The disarmament obligation and conclusion (paras. 23–24)

- The Court found the obligation to negotiate in good faith concerns the ~182 NPT parties. Bedjaoui goes further: there is a **twofold general obligation, opposable erga omnes**, to **negotiate in good faith and achieve the result**, which has probably become **customary** 50 years on. Answering this point was not *ultra petita* (beyond the question) – a notion foreign to advisory proceedings anyway (para. 23).
- The Opinion "frankly states the legal reality" while expressing the shared hope that **nuclear disarmament** remains the ultimate goal – no longer utopian. Closing with Einstein: "The fate of the world will be such as the world deserves" (para. 24).

Key takeaways

- Bedjaoui's **casting vote** decided paragraph 2E; he explains it to prevent it being read as permitting nuclear use.
- The non liquet (no definitive answer) is **not authorization**: the Court gives "no signal either way", and uncertainty does not create freedom to act.
- **Rejects Lotus** ("what is not prohibited is permitted") for this question: modern international law is a law of co-operation and community values (erga omnes, jus cogens), not pure state consent.
- Nuclear weapons are "**blind**": indiscriminate and causing unnecessary suffering – so "atomic warfare and humanitarian law … appear to be **mutually exclusive**".
- The prohibitions of **indiscriminate weapons** and **unnecessary suffering** are, in his view, **jus cogens** (the Court itself left this open).
- Even **self-defence for state survival** cannot exempt a state from "intransgressible" IHL norms; humanity's survival outweighs a single state's.

- The duty to **negotiate and achieve nuclear disarmament** is, in his view, **erga omnes and customary**, not only an NPT obligation.
- Read with the Opinion: Bedjaoui sits between the judges who said use is **always unlawful** (Weeramantry, Shahabuddeen, Koroma) and those who criticized the non liquet from the other side (Schwebel, Higgins).

Why it is relevant to this week's topic

- **Conduct of hostilities**: it insists that IHL applies "in all circumstances" and that the **ad bellum** right of self-defence – even for survival – cannot override **in bello** rules, defending the strict separation of the two bodies of law that paragraph 2E seemed to blur.
- **Means and methods of warfare**: it is a clear statement that a weapon **incapable of discrimination** is incompatible with IHL – the core test for unlawful weapons (AP I Arts. 35(2) and 51(4); CIHL Rules 70–71) – and argues these rules are **peremptory**.
- **Sources and method**: it shows how judges approach gaps in the law (non liquet, Lotus, the Martens Clause idea of humanity), useful for arguing about **new weapons** (cyber, autonomous systems) where no specific treaty exists – absence of a ban does not equal permission.
- **Unorthodox armed actors**: indirectly – his warning about uncontrolled **proliferation** and the shift from state consent to **community interests** (erga omnes, jus cogens) supports applying fundamental IHL prohibitions to all actors, not only states that consented to treaties.